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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

08/14/2026
Clerk of the Court
BY: ANNIE PASCUAL
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
EVIDENTIARY OBJECTIONS
TO O'CONNELL DECL.

Hearing: September 8, 2026
Time: 9:00 a.m.
Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.

1 3. The Clerk’s authority to accept this paper is under Government Code sections 68150 and
2 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
3 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
4 rules 2.118 and 2.119; this paper does not present any of those grounds.

5 4. The Court’s authority to consider the substance is under Evidence Code sections 210, 350,
6 352, 702, 800, 1200, and 1400 et seq., and Code of Civil Procedure section 425.16, subdivi-
7 sion (c).

8 5. This paper is filed August 14, 2026, which is early and still timely under Code of Civil
9 Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300, measured
10 from August 11, 2026 service of the motion set for September 8, 2026, 9:00 a.m., Department
11 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673). Plaintiff
12 opposes the motion and does not concede a stipulated date.

13 Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
14 10369670 notice, 10369671 O’Connell declaration, 10369673 MPA; served August 11, 2026).
15 Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken.
16 Case No. CGC-25-631801.

17 I. INTRODUCTION

18 Plaintiff objects to the following portions of the Declaration of Tyler J. O’Connell in Support of
19 Defendants’ Motion for Attorneys’ Fees and Costs under C.C.P. section 425.16(c) (served August
20 11, 2026), and to the characterizations of Exhibits C and D. Objections are stated for the hearing
21 record under Evidence Code sections 210, 350, 352, 702, 800, and 1200, and to preserve error.

22 II. OBJECTIONS (BY PARAGRAPH / EXHIBIT)

23 For each item: **Material** (text objected to); **Grounds**; **Ruling** line for the Court.

24 OBJECTION 1. PARAGRAPH 3

25 **Material:** “Plaintiff’s allegations squarely target Defendants’ litigation conduct all from Plaintiff’s
26 underlying personal injury jury trial”

27 **Grounds:** Improper opinion / legal conclusion (Evid. Code sections 800, 310): whether allega-

tions “target” protected activity is the Court’s section 425.16 determination, already made for fee entitlement purposes, not a fact within counsel’s personal knowledge for lodestar proof. Lack of foundation for “squarely” as applied to every allegation. Speculative as to pleading purpose.

Ruling: Sustained / Overruled: _____

OBJECTION 2. PARAGRAPH 8

Material: Prior reply invoicing “limited only to those matters directly related to” the anti-SLAPP motion “created a reduced attorneys’ fees amount when compared to the full amounts billed”

Grounds: Incomplete / misleading (Evid. Code section 356): asserts a reduced figure without stating the prior dollar amount or attaching the reply invoice for comparison. Lack of foundation for “full amounts billed” as the recoverable measure under section 425.16(c). Plaintiff does not object to the Court considering that Defendants previously used an anti-SLAPP-only methodology; Plaintiff objects to using paragraph 8 to prove that the larger figure is reasonable.

Ruling: Sustained / Overruled: _____

OBJECTION 3. PARAGRAPH 9

Material: Plaintiff “continued to litigate” after the anti-SLAPP ruling by “memoranda, briefs, and very lengthy email correspondences”; “threatened to file further actions in Contra Costa County” to “circumvent and sidestep” the ruling; fees “account[] for Plaintiff’s post-Anti-SLAPP Order conduct”

Grounds: Speculation as to intent (“circumvent,” “sidestep”). Improper opinion. Lack of foundation for treating post-ruling statutory reconsideration practice and correspondence as proof that every claimed hour is recoverable. Evidence Code section 352: unfair prejudice if used to inflate lodestar beyond anti-SLAPP-connected fees. Hearsay as to contents of unspecified emails not attached.

Ruling: Sustained / Overruled: _____

OBJECTION 4. PARAGRAPH 10

Material: “revised legal fees invoicing, which no longer reduces the recoverable attorneys’ fees” after “review and analysis of controlling statutory and case authorities”

1 **Grounds:** Improper legal conclusion that the unreined invoice is “recoverable.” Lack of founda-
2 tion identifying which authorities supposedly authorize case-wide fees. Speculative.

3 **Ruling:** Sustained / Overruled: _____

4 **OBJECTION 5. PARAGRAPH 11 (HOURS AND TOTAL)**

5 **Material:** “I spent 169.30 hours in litigating this case against Plaintiff, in its entirety, up through
6 July 10, 2026”; “all fees incurred ... in being forced to litigate this meritless lawsuit”; total
7 “\$35,973.00”; Exhibit C “listing all pertinent information, hours, and fees incurred”

8 **Grounds:** Lack of foundation / incomplete compilation: no task-level summary tying 169.30
9 hours to anti-SLAPP work. Contradiction / secondary-evidence problem: Exhibit C face total
10 (\$34,961.50 on OCR of served papers) does not match \$210 x 169.30. Improper opinion (“merit-
11 less”). Best-evidence / authenticity: redactions claimed “to preserve privilege” without a privilege
12 log showing what was withheld from lodestar review. Evidence Code section 352.

13 **Ruling:** Sustained / Overruled: _____

14 **OBJECTION 6. PARAGRAPH 11 (ANTICIPATED 2 HOURS)**

15 **Material:** “I anticipate spending another 2 hours attending the hearing for this motion”

16 **Grounds:** Speculation (future time not yet incurred). Lack of foundation that anticipated fee-
17 motion hearing time is recoverable as fees “on the special motion to strike” without a proper base
18 lodestar. Conditional: if the Court considers anticipated time, it should be limited and separately
19 stated, not used to paper over Exhibit C inconsistencies.

20 **Ruling:** Sustained / Overruled: _____

21 **OBJECTION 7. PARAGRAPHS 12-14 / EXHIBIT D / MC-010 CROSS-** 22 **REFERENCE**

23 **Material:** Costs “\$1,137.46” for “the life of this case”; concurrent MC-010 “will list the same cost
24 amount sought here”

25 **Grounds:** Lack of foundation that each cost component is allowable and necessarily incurred on
26 the special motion. Incomplete itemization in the declaration body. Double-recovery problem is
27 legal argument; as evidence, paragraph 14 admits identity of amounts and is not objected to for that

1 limited admission, but Plaintiff objects to Exhibit D / cost detail as proof of allowability without
2 task-level necessity showing. Hearsay vendor narratives in cost detail absent business-records
3 foundation.

4 **Ruling:** Sustained / Overruled: _____

5 **OBJECTION 8. EXHIBIT C INVOICE NARRATIVES (CCP 436 AND**
6 **RELATED-CASE REFERENCES)**

7 **Material:** Time entries / narratives referencing CCP 436 motion practice and Case No. CGC-25-
8 631802 (as reflected in OCR of served Exhibit C)

9 **Grounds:** Irrelevant to section 425.16(c) fees on the special motion to strike (Evid. Code sec-
10 tions 210, 350). Incomplete compilation if offered as anti-SLAPP-only proof. Misleading if left
11 unapportioned. Lack of foundation that such hours are recoverable here.

12 **Ruling:** Sustained / Overruled: _____

13 **OBJECTION 9. MPA CHARACTERIZATIONS INCORPORATING DECL.**
14 **PARAS. 9-11 (“DELUGE,” “AI,” “FRIVOLOUS”)**

15 **Material:** To the extent the fee MPA relies on declaration paragraphs characterizing Plaintiff’s
16 filings as an “AI”-driven “deluge” of “frivolous” papers to justify hours

17 **Grounds:** Lack of foundation for authorship methodology; counsel not qualified as an expert on
18 AI authorship (Evid. Code section 801). Improper opinion equating tool use with frivolousness.
19 Speculation. Evidence Code section 352. Such rhetoric is not lodestar proof.

20 **Ruling:** Sustained / Overruled: _____

21 **OBJECTION 10. EXHIBIT A / B (MINUTE ORDER AND ENTERED**
22 **ORDER) FOR FEE AMOUNT**

23 **Material:** Use of Exhibits A and B beyond proving that a special motion was granted

24 **Grounds:** No objection to authenticity for the limited purpose of showing the May 12, 2026
25 minute order and August 6, 2026 entered order. Objection to any use of those exhibits to prove the
26 **amount** of fees or to prove that case-wide fees are recoverable.

27 **Ruling:** Sustained / Overruled: _____

1 **III. REQUEST**

2 Plaintiff requests that the Court sustain the foregoing objections, exclude or limit the objected-to
3 material for lodestar purposes, and require any fee award to rest solely on admissible, anti-SLAPP-
4 connected, non-duplicative proof.

5 Dated: August 14, 2026

6 

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